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**AS AMENDED**

By: Crosswhite Hader of the  
House

Sacchieri of the Senate

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13           SECTION 1.           AMENDATORY           25 O.S. 2021, Section 311, as  
14 amended by Section 1, Chapter 60, O.S.L. 2024 (25 O.S. Supp. 2024,  
15 Section 311), is amended to read as follows:

16       Section 311.   A.   Notwithstanding any other provisions of law,  
17 all regularly scheduled, continued or reconvened, special or  
18 emergency meetings of public bodies shall be preceded by public  
19 notice as follows:

20           1. All public bodies shall give notice in writing by December  
21 15 of each calendar year of the schedule showing the date, time and  
22 place of the regularly scheduled meetings of such public bodies for  
23 the following calendar year;

1        2. All state public bodies including, but not limited to,  
2 public trusts and other bodies with the state as beneficiary, shall  
3 give such notice to the Secretary of State;

4        3. All county public bodies including, but not limited to,  
5 public trusts and any other bodies with the county as beneficiary,  
6 shall give such notice to the county clerk of the county wherein  
7 they are principally located;

8        4. All municipal public bodies including, but not limited to,  
9 public trusts and any other bodies with the municipality as  
10 beneficiary, shall give such notice to the municipal clerk of the  
11 municipality wherein they are principally located;

12       5. All multicounty, regional, areawide or district public  
13 bodies including, but not limited to, district boards of education,  
14 shall give such notice to the county clerk of the county wherein  
15 they are principally located, or if no office exists, to the county  
16 clerk of the county or counties served by such public body;

17       6. All governing boards of state institutions of higher  
18 education, and committees and subcommittees thereof, shall give such  
19 notice to the Secretary of State. All other public bodies covered  
20 by the provisions of the Oklahoma Open Meeting Act which exist under  
21 the auspices of a state institution of higher education, but a  
22 majority of whose members are not members of the institution's  
23 governing board, shall give such notice to the county clerk of the  
24 county wherein the institution is principally located;

1       7. The Secretary of State and each county clerk or municipal  
2 clerk shall keep a record of all notices received in a register open  
3 to the public for inspection during regular office hours, and, in  
4 addition, shall make known upon any request of any person the  
5 contents of the register;

6       8. If any change is to be made of the date, time or place of  
7 regularly scheduled meetings of public bodies, then notice in  
8 writing shall be given to the Secretary of State or county clerk or  
9 municipal clerk, as required herein, not less than ten (10) days  
10 prior to the implementation of any such change;

11       9.   a. In addition to the advance public notice in writing  
12               required to be filed for regularly scheduled meetings,  
13               described in paragraph 1 of this subsection, all  
14               public bodies shall, at least twenty-four (24) hours  
15               prior to such regularly scheduled meetings, display  
16               public notice of the meeting by at least one of the  
17               following methods:

18               (1) by posting information that includes date, time,  
19               place and agenda for the meeting in prominent  
20               public view at the principal office of the public  
21               body or at the location of the meeting if no  
22               office exists, or

23               (2) by posting on the public body's Internet website  
24               the date, time, place and agenda for the meeting

1 in accordance with Section 3106.2 of Title 74 of  
2 the Oklahoma Statutes. Additionally, the public  
3 body shall offer and consistently maintain an  
4 email distribution system for distribution of  
5 such notice of a public meeting required by this  
6 subsection, and any person may request to be  
7 included without charge, and their request shall  
8 be accepted. The emailed notice of a public  
9 meeting required by this subsection shall include  
10 in the body of the email or as an attachment to  
11 the email the date, time, place and agenda for  
12 the meeting and it shall be sent no less than  
13 twenty-four (24) hours prior to the meeting.  
14 Additionally, the public body shall make the  
15 notice of a public meeting required by this  
16 subsection available to the public in the  
17 principal office of the public body or at the  
18 location of the meeting during normal business  
19 hours at least twenty-four (24) hours prior to  
20 the meeting. Public bodies may require persons  
21 participating in the email distribution system to  
22 annually confirm the request to be included in  
23 the email distribution system. If the person  
24 does not confirm the request, public bodies may

1                   remove that person from the email distribution  
2                   system. Nothing herein prohibits an individual  
3                   from participating in an email distribution  
4                   system from which that individual was previously  
5                   removed.

6           b.   In addition to the notice requirements of this  
7               section, all state public bodies, as defined in  
8               paragraph 2 of this subsection, shall, at least  
9               twenty-four (24) hours prior to regularly scheduled  
10              meetings, display public notice of the meeting by:

11               (1)   posting information that includes date, time,  
12                   place and agenda for the meeting in prominent  
13                   public view at the principal office of the public  
14                   body or at the location of the meeting if no  
15                   office exists, and

16               (2)   posting on the public body's Internet website the  
17                   date, time, place and agenda for the meeting in  
18                   accordance with Section 3106.2 of Title 74 of the  
19                   Oklahoma Statutes;

20           10.   The twenty-four (24) hours required in paragraph 9 of this  
21           subsection shall exclude Saturdays, Sundays and holidays legally  
22           declared by the State of Oklahoma. The posting or distribution of a  
23           notice of a public meeting as described in paragraph 9 of this  
24           subsection shall not preclude a public body from considering at its

1 regularly scheduled meeting any new business. "New business", as  
2 used herein, shall mean any matter not known about or which could  
3 not have been reasonably foreseen prior to the time of the posting;

4 11. In the event any meeting is to be continued or reconvened,  
5 public notice of such action including date, time and place of the  
6 continued meeting, shall be given by announcement at the original  
7 meeting. Only matters appearing on the agenda of the meeting which  
8 is continued may be discussed at the continued or reconvened  
9 meeting;

10 12. Special meetings of public bodies shall not be held without  
11 public notice being given at least forty-eight (48) hours prior to  
12 the meetings. Such public notice of date, time and place shall be  
13 given in writing, in person or by telephonic means to the Secretary  
14 of State or to the county clerk or to the municipal clerk by public  
15 bodies in the manner set forth in paragraphs 2, 3, 4, 5 and 6 of  
16 this subsection. The public body also shall cause written notice of  
17 the date, time and place of the meeting to be mailed or delivered to  
18 each person, newspaper, wire service, radio station and television  
19 station that has filed a written request for notice of meetings of  
20 the public body with the clerk or secretary of the public body or  
21 with some other person designated by the public body. Such written  
22 notice shall be mailed or delivered at least forty-eight (48) hours  
23 prior to the special meeting. The public body may charge a fee of  
24 up to Eighteen Dollars (\$18.00) per year to persons or entities

1 filing a written request for notice of meetings, and may require  
2 such persons or entities to renew the request for notice annually.  
3 In addition, all public bodies shall, at least twenty-four (24)  
4 hours prior to such special meetings, display public notice of the  
5 meeting, setting forth thereon the date, time, place and agenda for  
6 the meeting. Only matters appearing on the posted agenda may be  
7 considered at the special meeting. Such public notice shall be  
8 posted in prominent public view at the principal office of the  
9 public body or at the location of the meeting if no office exists.  
10 Twenty-four (24) hours prior public posting shall exclude Saturdays,  
11 Sundays and holidays legally declared by the State of Oklahoma. In  
12 lieu of the public posting requirements of this paragraph, a public  
13 body may elect to follow the requirements found in division (2) of  
14 subparagraph a of paragraph 9 of this subsection, provided that  
15 forty-eight-hour notice is required for special meetings and that  
16 the forty-eight-hour requirement shall exclude Saturdays, Sundays  
17 and holidays legally declared by the State of Oklahoma;

18 13. In the event of an emergency, an emergency meeting of a  
19 public body may be held without the public notice heretofore  
20 required. Should an emergency meeting of a public body be  
21 necessary, the person calling such a meeting shall give as much  
22 advance public notice as is reasonable and possible under the  
23 circumstances existing, in person or by telephonic or electronic  
24 means; and

1        14. A public body that gives public notice of a meeting for  
2 which there will be a videoconference option in accordance with  
3 Section 307.1 of this title shall not modify the method of meeting  
4 described in the notice prior to the meeting and shall conduct the  
5 meeting according to the methods described in the notice. If a code  
6 or password is required to access the videoconference meeting, the  
7 code or password shall be included in the public notice.

8        B. 1. All agendas required pursuant to the provisions of this  
9 section shall identify all items of business to be transacted by a  
10 public body at a meeting including, but not limited to, any proposed  
11 executive session for the purpose of engaging in deliberations or  
12 rendering a final or intermediate decision in an individual  
13 proceeding prescribed by the Administrative Procedures Act.

14        2. If a public body proposes to conduct an executive session,  
15 the agenda shall:

- 16            a. contain sufficient information for the public to
- 17                    ascertain that an executive session will be proposed,
- 18            b. identify the items of business and purposes of the
- 19                    executive session, and
- 20            c. state specifically the provision of Section 307 of
- 21                    this title authorizing the executive session.

22        SECTION 2. This act shall become effective November 1, 2025.

23        COMMITTEE REPORT BY: COMMITTEE ON TECHNOLOGY AND TELECOMMUNICATIONS  
24        April 17, 2025 - DO PASS AS AMENDED